

25NWCV00368 25NWCV00368

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Case Number: 25NWCV00368 Hearing Date: August 27, 2026 Dept: L

Plaintiff Brian Anakin

Hill-Alamina's Motion to Compel the Deposition of Rock Miller, P.E. is DENIED as MOOT.

Plaintiff to give notice.

Background

This is a wrongful death action.

On January 29, 2025, Plaintiff Brian Anakin Hill-Alamina, a minor, by and through his guardian ad litem, Angela Hill, individually and as wrongful death beneficiary and successor-in-interest to decedent Brian Alamina, ("Plaintiff") filed this action against Defendants City of Lakewood, City of Cerritos, County of Los Angeles, State of California, Greystar California, Inc., and Does 1 to 100.

The Complaint alleges that Brian

Alamina ("Decedent") was killed in a motor vehicle accident on roadways that were negligently owned, designed, and maintained by Defendants such that there was an unreasonable risk of harm to Decedent. Specifically, in June 2024, Decedent "was traveling eastbound on Del Amo Boulevard between Norwalk Boulevard and Claretta Avenue when a vehicle operated by Yaseerarafat G. Shaikh attempted a U-turn [from the westbound side of the road] and collided with [him]." (Compl., ¶ 1.) The Complaint alleges causes of action for 1) Negligence, 2) Premises Liability, 3) Negligence - Dangerous Condition of Public Property, 4) Survival Action (erroneously labeled as "Third Cause of Action"), and 5) Wrongful Death.

Various amendments, cross-pleadings, and dismissals have been filed. As amended, the Complaint asserts claims against Defendants the City of Lakewood, the City of Cerritos, The People of the State of California, acting by and through the Department of Transportation, Greystar California, Inc., Yasseerarafat G. Shaikh, Mirza Mahejabin, B9 MF 12350 Del Amo LLC, and Monterey Lakewood Owner, LLC (collectively, "Defendants"). The Defendants have filed a total of five cross-claims directed amongst themselves.

On August 20, 2026, the Court granted 1) Defendant/Cross-Defendant/Cross-Complainant City of Lakewood's (hereinafter, "Lakewood") Motion for Summary Judgment, and 2) Defendant/Cross-Defendant/Cross-Complainant City of Cerritos' (hereinafter, "Cerritos") Motion for Summary Judgment. (8/20/26 Minute Order.)

Plaintiff now moves to compel the deposition of expert witness Rock Miller.

No opposition has been filed as of August 26, 2026.

This Motion was originally set to be heard on November 24, 2026. On July 16, 2026, the Court denied Plaintiff's Ex Parte Application to Compel the Deposition of Rock Miller. However, the Court set the hearing on this Motion to today's date. (7/16/26 Minute Order.)

Discussion

Plaintiff moves the Court to "compel the presence of Rock Miller for a deposition in this matter on or before the date of July 24, 2026." (Notice, 2:5-6.) Plaintiff argues that the Declaration of Rock Miller was offered by both Cerritos and Lakewood in support of their respective Motions for Summary Judgment (MSJs). Plaintiff requests a limited deposition of Mr. Miller in order to question him regarding 1) which of his opinions support which MSJ, and 2) which materials were provided by which defendant. Further, Plaintiff wishes to question Mr. Miller on the methodology used to form his opinions—Mr. Miller's depend on a "site visit" but do not describe the methodology with detail. Plaintiff asserts that Plaintiff will be prejudiced if he must oppose Cerritos' and Lakewood's respective MSJs by July 31, 2026 without taking Mr. Miller's deposition.

Firstly, the Court notes that

Cerritos and Lakewood filed their MSJs on June 11, 2026 and June 12, 2026, respectively. Plaintiff did not file this Motion until July 14, 2026, around 2 weeks before the oppositions were due. There is no explanation for this delay.

The Court has ruled on Cerritos'

and Lakewood's MSJs on August 20, 2026. (8/20/26 Minute Order.) Further, the Court notes that it did not necessarily rely on the Declaration of Rock Miller in ruling on the MSJs. The Court finds that the issues presented in this Motion are now moot.

Accordingly, Plaintiff's Motion

to Compel the Deposition of Rock Miller, P.E. is DENIED as MOOT.